

(5) The interests of defendants other than the mortgagor. (See *infra*, § 676.)

(6) Attorneys' fees and other expenses. ...

(5 Witkin, Cal. Proc. (6th ed. 2026) Pleading, § 673.)

In the case at bench, it is clear from the face of the complaint that plaintiffs have failed to name all persons having an interest in the property as defendants. Plaintiffs allege defendant's wife has an interest in the property and she is not named as a defendant. There are no allegations regarding other recorded interests on the property other than plaintiffs' interest created by the deed of trust. As such, the cause of action is insufficiently pleaded and no judgment of judicial foreclosure can properly be entered. (See, *Rose v. Lawton* (1963) 215 Cal.App.2d 18, 19-20; *Williams v. Foss* (1924) 69 Cal. App. 705, 707-708.)

Further, in seeking a judgment in their favor on their cause of action for judicial foreclosure plaintiffs are asserting priority over all other recorded interests on the property which likely include a deed of trust securing a mortgage used by defendant and his wife to purchase the property. Plaintiffs have provided no authority to allow the sale of the property by a party that is likely a junior lienholder without notice and to the detriment of a senior lienholder.

To the extent plaintiffs are also seeking a money judgment in connection with the alleged breach of contract, damages in the amount of \$386,665.15 are not supported by a ledger or other accounting evidence showing payments made and the balance due. The balance is not consistent with the declaration of Avelino Castellanos attesting to a payment of \$26,345.91 toward the principal amount of \$400,000 owed pursuant to the Settlement Agreement.

Plaintiffs request attorney fees in the amount of \$15,579.33 billed by attorneys of records for plaintiffs incurred in the prosecution of this action. (Cowin Decl., ¶¶ 2-4.) Attorney fees upon default judgment are calculated using Appendix A1 of the Fresno County Superior Court Local Rules. The fees sought exceed those allowed under the Local Rules.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 8-21-26 .
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Martinez-Arias v. Del Carmen Martinez et al.***
Superior Court Case No. 26CECG01031

Hearing Date: August 25, 2026 (Dept. 502)

Motion: By Defendant Guadalupe Del Carmen Martinez for Stay

Tentative Ruling:

To grant and stay all proceedings, pending final disposition of Fresno Superior Court Case No. F24908581.

To set a status conference for Tuesday, December 1, 2026, 3:30 p.m. in Department 502.

Explanation:

An application for a stay is addressed to the sound discretion of the trial court. (*Thomson v. Continental Ins. Co.* (1967) 66 Cal.2d 738, 746.) An order staying an action until determination of criminal charges allows plaintiff to prepare his or her action "while alleviating [defendant's] difficult choice between defending either the civil or criminal case." (*See Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 690.) The requesting party is generally entitled to a stay in the civil action until disposition of the criminal matter. (*See id.*)

Here, defendant Guadalupe Del Carmen Martinez ("Defendant") requests a stay of proceedings. The basis upon which he seeks this relief is due to a parallel criminal proceeding, arising from the same circumstances and among the same parties as the present civil matter.

Plaintiff Jacqueline Martinez-Arias ("Plaintiff") opposes purely on sufficiency of evidence. Material to this motion, Plaintiff submits that none of the discovery submitted has sufficient foundation. Plaintiff's Objections, No. 2, 3, and 6 are sustained as to foundation. Objections to the memorandum, which are not evidence, are overruled, at No. 1, 7, and 8. Objections as to the declaration of Scott Levy are overruled, at No. 4 and 5.

Scott Levy submits that he is counsel of record for Defendant in the related criminal matter. He indicates an expectation that the criminal matter may resolve in the next six months. He indicates that if the civil matter proceeds, it will affect Defendant's ability to receive a fair trial. Based on the above, the court finds sufficient basis to conclude that Defendant's Fifth Amendment rights as to the criminal matter are implicated in further participating in the present civil matter.

